# SOFTWARE SERVICES AGREEMENT

This Software Services Agreement (the "Agreement") is entered into as of October 6, 2026 (the "Effective Date"), by and between CloudNova Technologies LLC, a Delaware limited liability company ("Provider"), and Apex Retail Group Inc., a California corporation ("Customer").

## 1. Services

Provider shall provide Customer access to its cloud analytics platform and related support services described in Exhibit A (the "Services"). Provider may modify, suspend, or discontinue any feature of the Services at any time without prior notice and without liability.

## 2. Fees and Payment

Customer shall pay all fees within fifteen (15) days of invoice. Late payments accrue interest at 1.5% per month. Provider may increase fees by up to thirty percent (30%) upon thirty (30) days' notice. All fees are non-refundable. Customer is responsible for all taxes.

## 3. Term and Automatic Renewal

This Agreement begins on the Effective Date and continues for an initial term of twenty-four (24) months. Thereafter it automatically renews for successive twelve (12) month periods unless Customer provides written notice of non-renewal at least ninety (90) days before the end of the then-current term. Early termination by Customer does not relieve Customer of payment obligations for the full remaining term.

## 4. Termination

Provider may terminate this Agreement immediately, with or without cause, upon written notice. Customer may terminate only for material breach by Provider that remains uncured for sixty (60) days after written notice. Upon termination for any reason, Customer's license ends immediately and Provider may delete Customer data within seven (7) days without further notice.

## 5. Confidentiality

Each party shall protect the other party's Confidential Information using at least reasonable care. Notwithstanding the foregoing, Provider may use Customer Confidential Information, including customer lists and usage data, to improve its products and may disclose such information to affiliates and subcontractors worldwide without Customer's prior consent. Customer's confidentiality obligations survive indefinitely; Provider's survive for one (1) year after termination.

## 6. Data Privacy and Security

Customer acknowledges that Provider hosts data in multiple jurisdictions, including countries without adequacy decisions under applicable privacy law. Provider does not warrant that the Services are free from unauthorized access, loss, or corruption. Customer remains solely responsible for compliance with all privacy and data protection laws applicable to Customer data, including obtaining all required consents.

## 7. Intellectual Property

All rights in the Services, including any feedback, suggestions, or customizations provided by Customer, are and shall remain the exclusive property of Provider. Customer hereby irrevocably assigns to Provider all intellectual property rights in such feedback and customizations without further consideration.

## 8. Warranties Disclaimer

THE SERVICES ARE PROVIDED "AS IS" AND "AS AVAILABLE." PROVIDER DISCLAIMS ALL WARRANTIES, EXPRESS OR IMPLIED, INCLUDING MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, TITLE, AND NON-INFRINGEMENT. PROVIDER DOES NOT WARRANT THAT THE SERVICES WILL BE UNINTERRUPTED, ERROR-FREE, OR MEET CUSTOMER'S REQUIREMENTS.

## 9. Limitation of Liability

TO THE MAXIMUM EXTENT PERMITTED BY LAW, PROVIDER'S TOTAL AGGREGATE LIABILITY ARISING OUT OF OR RELATED TO THIS AGREEMENT SHALL NOT EXCEED THE LESSER OF (A) ONE HUNDRED U.S. DOLLARS (US $100) OR (B) THE FEES PAID BY CUSTOMER IN THE ONE (1) MONTH PRECEDING THE CLAIM. PROVIDER SHALL NOT BE LIABLE FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, PUNITIVE, OR EXEMPLARY DAMAGES, INCLUDING LOST PROFITS, LOST DATA, OR BUSINESS INTERRUPTION, REGARDLESS OF THE THEORY OF LIABILITY AND EVEN IF ADVISED OF THE POSSIBILITY OF SUCH DAMAGES. THESE LIMITATIONS APPLY EVEN IF ANY LIMITED REMEDY FAILS OF ITS ESSENTIAL PURPOSE.

## 10. Indemnification

Customer shall indemnify, defend, and hold harmless Provider and its officers, directors, employees, and agents from and against any and all claims, damages, losses, liabilities, costs, and expenses (including reasonable attorneys' fees) arising out of or related to: (a) Customer's use of the Services; (b) Customer data; (c) Customer's breach of this Agreement; or (d) any third-party claim related to Customer's business. Provider has no corresponding indemnification obligation to Customer.

## 11. Non-Compete and Non-Solicit

During the term and for three (3) years thereafter, Customer shall not develop, market, or use any product or service competitive with the Services, nor solicit or hire any employee or contractor of Provider. Customer acknowledges this restriction is reasonable and that breach would cause irreparable harm entitling Provider to injunctive relief without bond.

## 12. Governing Law and Dispute Resolution

This Agreement is governed by the laws of the State of Delaware, without regard to conflict of laws principles. Any dispute shall be resolved exclusively by binding arbitration in Wilmington, Delaware, under the AAA Commercial Arbitration Rules. Customer waives any right to a jury trial and to participate in a class action. Provider may seek injunctive relief in any court of competent jurisdiction.

## 13. Assignment

Customer may not assign this Agreement without Provider's prior written consent. Provider may freely assign this Agreement, including to a competitor of Customer, without notice. Any attempted assignment by Customer in violation of this section is void.

## 14. Force Majeure

Provider is excused from performance for any delay or failure caused by events beyond its reasonable control, including labor disputes, internet outages, third-party service failures, and acts of government. Customer has no corresponding force majeure rights and remains obligated to pay fees during any such period.

## 15. Entire Agreement

This Agreement constitutes the entire agreement between the parties and supersedes all prior negotiations. Provider may amend this Agreement by posting an updated version on its website; continued use of the Services constitutes acceptance. No amendment proposed by Customer is effective unless signed by an authorized officer of Provider.

IN WITNESS WHEREOF, the parties have executed this Agreement as of the Effective Date.

Provider: CloudNova Technologies LLC  By: _____  Name: Jordan Hale, CEO

Customer: Apex Retail Group Inc.  By: _____  Name: Sam Rivera, VP Operations